TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, November 12, 2014

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Chair Godau, Vice-Chair Swanson, Liaison Bridges, Member Engelhardt, Alternate McCaslin, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod
Absent – Szczepanski, excused
Public –Alan Schultz, Kim Hamilton, Marilyn DeFrees, Representative of C & M Mobile Homes

Approval of Minutes:
Regular Meeting minutes of October 8, 2014 – It was moved by Bridges and seconded by Swanson to accept the minutes as presented. Motion passed Yes (5) No (0)

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau advised that Lincoln Township is a zoned township, of only six in Clare County. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate.
He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the

process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. Once an appeal is made to the ZBA and denied or approved, any aggrieved person can appeal to the Circuit Court.

Purpose: Chair Godau read the following information: To consider the September 21, 2014, application of Alan and Jane Schultz for a Request for Variance for property #18-010-460-014-01 located at 210 Bringold Ave., Lake George, Michigan, for the construction of a covered deck and walkway which violates the fifty foot (50') setback from the water's edge (Shingle Lake). The notice of this variance was published in the *Clare County Cleaver* on October 30, 2014, in accordance with the township zoning ordinances. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Mr. Alan Schultz stated the first reason for the request was that they were given permits for a mobile home with two covered decks. A neighbor has a similar situation with covered decks even closer to the lake. Responding to the comment that he was told to cease and desist, he received that letter on the day that the construction was completed. He had Carey on the property prior to applying for the variance, and Carey actually helped a representative from C & M Homes measure the property to meet the setbacks. He showed a survey that shows that the proposed deck was within the 50 foot setback. He feels he applied for everything he was supposed to and that he didn't know that a separate zoning permit was required for the decks. His neighbors don't have a problem with anything he has been doing. He also stated that the neighbor who has a deck that is in violation of the setbacks was given a variance by the board at an earlier time. If he had known ahead of time that his structures were in violation,

he would not have gone forward. The third deck is stairs and a little porch as an entrance. This is not the deck in question as he didn't have a zoning permit for that one in particular. It was the only way, he said, to get into and out of the house at the time. He stated that he thought he was doing everything correctly.

ZBA Members Comments & Questions:

Godau: knowing that normal porches included with typical modular installers, he commented that the existing porches that Schultz put in are not actually small as stated.

Concerning the statement about neighbors, the board does not look at the past, but goes from the present and makes decisions on what is being dealt with and not what has gone before.

Concerning the permit, does Mr. Schultz know that the first step is to get a zoning permit? Answer from Marilyn DeFrees was that when she goes into a job to pull a building permit, she assumes that she would have been informed that the zoning permit was required prior to the building permit.

Mantei: On your building permit, it shows no decks on the plans. Mantei stated that he assumed that when he was informed that there would be decks, they were within the setbacks.

Godau: The term structure includes any decks, which were not shown on the plans initially.

Schultz: Roger [Zoning Administrator Carey] never told me that a zoning permit was required.

Engelhardt: In your mind the permits were the building permit and not zoning?

Schultz: Yes

Engelhardt pointed out the different series of dates in which Carey communicated the needs for permits and stoppage of the deck in question. Schultz said that he didn't receive the letter for stoppage until he returned home, after the construction was finished.

Bridges & Engelhardt: On 8/25, you received a complaint about building the deck without a permit. 8/27 you received a letter saying Carey would have to deny the permit as it was too close to the lake. 9/8 Monday Carey received the two applications. He approved the back deck and denied the front.

Bridges: do you frequently apply for permits and then proceed with the work without the permit?

DeFrees: I guess I was at fault as I didn't know we needed a zoning permit as well as a building.

Bridges: Do you start work without permits? DeFrees: no

Engelhardt: But you did continue.

DeFrees: The deck was all but finished by the time we got the letter of stoppage.

Engelhardt: Without the permit and with a red flag of the problem, you should have stopped, but continued to build.
Godau: On 6/11 before the modular was put in; Carey approved this with no plans for decks showing.
Bridges: your site plan should show the structures and all the amenities associated with the structures. That is what Carey had to operate from. You went ahead with the changes without approval. Carey tried to make you understand what the problem was and you still went ahead with the construction.
Schultz: that was not our intention.
Bridges: but your contractor should have known that and stopped construction. Any contractor is supposed to know that.
Schultz: I informed her any time Carey gave me any paperwork and assumed that she was taking care of it.
Engelhardt: I am not a contractor either, but the continuation of construction without permits really bothers me.
McCaslin: Carey has a note on one of the forms in which he was with Schultz and the builder while measurements were taken and he must have informed them of the setbacks.
Mantei: Here is a site plan and there are no decks shown on it anywhere.
Godau: Mantei was not informed about the decks when he issued the building permit, so you cannot fall back on the fact that that permit was issued. You needed the paperwork to cover the project and you did not have it.
DeFrees: As soon as we were told, we did apply for the permits required.
Engelhardt: But you didn't stop building.
Bridges: Wasn't it a red flag knowing that the original house was setback only two feet and then a 16 foot deck was being proposed?
Carey: I was there when the person measured and everyone knew it was 52 feet.
Bridges: That should have been a red flag, and yet you continued to build. I have a real problem with a contractor who doesn't give a rip about local rules.
DeFrees: That was not the intention.
Mantei: I won't write a permit without zoning approval and had that [zoning permit] for the house; I had no idea about the decks.
DeFrees: I am very sorry; it was an honest mistake and I hope we can resolve it.
Godau: Do you have some other scenario that you want to resolve this issue? I have given you a drawing that notes the areas that are in violation of the setbacks to help you figure a way to resolve this.
Mantei in response to Bridges: it is illegal to come out of a door with just steps; you must have a platform

--General individual discussions about resolutions for this problem from the board.

Bridges: The builder should eat the expense for the change to compliance.
Engelhardt: we cannot grant a variance for what you are asking, but we would be willing to grant a smaller variance to help you make the situation better and less in violation.
Schultz brought up that if you are giving a small variance for this, why not for the whole thing as the neighbors are closer than 50 feet from the lake. Variances were given for others, why not him?
Board: That is not now; it is in the past.
Schultz: I was nice enough to grant the fire department the right to run a drain through my property. I would like to have a variance for the whole deck; if I had known any of this would be this way, I would never have done it in the first place.
Bridges; why were the two decks not included on the plans?
Schultz: I didn't know they weren't; I let the contractor take care of that.
Board: this is an issue you will have to take up with the contractor.
McCaslin: I was under the impression that it is not the board's job to help you come up with a solution. Your builder should, as they should have stopped construction when the complaints were received. We are trying to help you, but if you want to go for the whole thing, we can take a vote on that, and you will have to start the whole process over again.

Public Comment:
One letter in support of the variance was returned to Godau.

Kim Hamilton said that he feels the need to help Alan as a former chair of the ZBA. He stated that the ZBA have the ability to negotiate with you. I don't know how they are going to vote, but I have a feeling that you will not get what you are asking for. If I were you I would negotiate with them to see if you can get a solution that will work for you.

DeFrees: Does this need to be decided tonight or can we work with the builder to see what can happen?

Bridges: We have to complete our work tonight, but it will give you a chance to work with your builder to come up with something to take to Roger to resolve this issue after the meeting tonight.

ZBA Members Comments & Questions: None

Public Hearing Closed by Chair: 8:11 pm

Closed Hearing is called to Order by Chair: 8:12 pm

Discussion and Further Questions by ZBA Members:
None

Closed Session is Closed by Chair: 8:15 pm

Open Meeting Reconvened by Chair: 8:15 pm
There were some final comments concerning verbal statements between Inspector Mantei and a salesperson at C & M Homes. Godau finished it with a statement concerning who is responsible for keeping an eye on contractors and requirements.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Chair Godau made a motion to deny the variance requesting a deck structure and deck roof to extend thirteen feet (13') into the required fifty foot (50') setback from the water's edge. Correction to the existing non-compliance structure to be modified to conform within sixty (60) days from today's date. Seconded by Engelhardt.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Godau: **Yea**; Swanson: **Yea**; Bridges: **Yea**; Engelhardt: **Yea**; McCaslin: **Yea**
Motion passed: 5 yeas; 0 nays. Variance is denied.

Adjournment: Engelhardt moved to adjourn; Bridges seconded. Motion passed with all in favor. Meeting adjourned at 8:33 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary

Attachment #1

Prior to issuing the Zoning Permit for the Modular home, on 6-11-14, I had twice conversed with Mr. Schultz. Both times I explained his structure had to be 50 feet from the lake. The second time I helped Mr. Schultz and a rep from C&M Homes measure out the area that the modular home would fit into allowing for the 50 setback. My Zoning Permit for Mr. Schultz was approved on 6-11-14 and it says nothing about adding decks to the structure.

On 8/23/14 I received a complaint Mr. Schultz had started building a deck on the front of his home and the back of his home with no Zoning Permit. On 8/25/14 I sent Mr. Schultz notification he needed a Zoning Permit for his decks. On 9/3/14 I received a Zoning Permit application for the modular home and the two decks. I mailed it back to Mr. Schultz and explained I couldn't accept the application the way it was written as it was for a Modular home and two decks and the Modular home had already been approved. I then suggested he apply for the decks separately as I would have to deny the front deck as it is too close to the lake, in violation of our setbacks. On 9/8/14 I received two applications for decks, I approved the back deck and denied the front deck as it is located too close to the lake violating our setbacks. On 9/11/14 I sent Mr. Schultz and C&M Homes a letter advising them the front deck was not approved and construction should cease until such time as the issue could be resolved. The last picture is from 9/19/14 it shows the completed deck after Mr. Schultz was instructed to cease construction until the matter was settled. The members of the ZBA have copies of all pictures coinciding with these dates. This is a perfect example of build it and ask for forgiveness later. I don't believe this should be forgiven. Sometime prior to 10-22-14 Mr. Schultz added a third deck to his structure, again without a Zoning Permit.

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. Only the rarest situations should qualify for relief from the zoning ordinance's requirements because the zoning regulations are ultimately intended to protect the general health, safety and welfare of the township.

Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties. Michigan appellate court has held that the Zoning Board of Appeals cannot grant a Variance without substantial evidence of all 5 practical difficulties. The Michigan Court of Appeals has also adopted the following factor, whether compliance with the strict letter of the restrictions governing area, setbacks, frontage, height, bulk or density would unreasonably prevent the owner from using the property for a permitted purpose. This property can be used for its permitted purpose.

For number one Mr. Schultz says, being located at the end of the lake the house is set back as far as it can go to meet and exceed the 50 foot setback. Mr. Schultz knew there was not enough room for a deck before he even put the home in. The following came from a zoning article I recently read: quote "the proper interpretation is to ask whether the applicant took some affirmative action that created the need for the variance. Filling the entire building envelope so that a porch must necessarily extend into the setback area is not a Practical Difficulty" unquote. There are other routes Mr. Schultz could take.

For number two Mr. Schultz says, the end of the lake, in a cove, the waterfront is uniquely shaped problematic to work with. Mr. Schultz, aside from his deck had more than enough room for his home, there is no practical difficulty.

Number three, Mr. Schultz says, because his deck does not obstruct anyone's view of the lake. Right of view is not a legal issue in Michigan this is not a practical difficulty.

Number four Mr. Schultz says, the uniqueness of the lake restricts and being on the corner he had to adhere to the road right of way. This was not a practical difficulty as Mr. Schultz bought the property this way, nothing changed on the property, this issue was self-created and is not a practical difficulty.

Number five, minimum variance necessary, aside from the front deck, which there are other ways to handle, Mr. Schultz has been allowed all he has asked for. As for

the deck, Mr. Schultz has options, he can place his deck at ground level, this is not a practical difficulty.

The bottom line is Mr. Schultz knew there was no room for a structure before he even put the deck in and now afterwards he is claiming practical difficulty.